



Road Traffic (Driving Instruction) Act 1984

1984 CHAPTER 13

An Act to Amend Part V of the Road Traffic Act 1972.
[12th April 1984]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) After subsection (1) of section 126 (instruction for Certificate of payment to be given only by registered or licensed persons) of registration or the Road Traffic Act 1972 (in this Act referred to as “the 1972 licence to be Act”) there shall be inserted the following subsection—
exhibited.
1972 c. 20.

“(1A) No instruction, for the giving of which payment of money or money's worth is, or is to be, made by, or in respect of, the person to whom the instruction is given, shall be given in the driving of a motor car unless there is fixed to and exhibited on that motor car in such manner as may be prescribed by regulations either—

- (a) a certificate in such form as may be so prescribed that the name of the person giving the instruction is in the register; or
- (b) a current licence granted under this Part of this Act authorising him to give such instruction.”

(2) In subsection (2) of that section after the words “subsection (1)” there shall be inserted the words “or (1A)”.

(3) After subsection (4) of that section there shall be inserted the following subsection—

“(4A) If instruction is given in contravention of subsection (1A) above, the person by whom it is given shall be guilty of an offence.”

(4) In section 127(1) of that Act (exemption of police instructors from prohibition imposed by section 126) after the words “Section 126(1)” there shall be inserted the words “and (1A)”.

(5) In part I of Schedule 4 to that Act (prosecution and punishment of offences) after the entry relating to section 126(3) of that Act there shall be inserted the following entry—

126(4A)	Giving of paid instruction without there being exhibited in the motor car a certificate of registration or a licence under Part V.	Summarily.	Level 3 on the standard scale.	—	—	—
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Registration of approved instructors.

2.—(1) For paragraphs (a) and (b) of subsection (1) of section 128 of the 1972 Act (the register and registration and duration thereof) there shall be substituted the following paragraphs—

“(a) that he has passed such examination of ability to give instruction in the driving of motor cars (consisting of a written examination, a practical test of ability and fitness to drive and a practical test of ability and fitness to instruct) as may be so prescribed;

(b) that he is the holder of a current licence of one of the following kinds, that is to say,—

(i) a licence to drive a motor car granted under Part III of this Act (not being a provisional licence within the meaning of that Part); and

(ii) a licence to drive a motor car (not being a licence corresponding to such a provisional licence as aforesaid) granted under the law in force in Northern Ireland;

(bb) that, during the period of six years ending with the day on which the application is made, the periods (if any) for which he did not hold one or more of the following licences, namely—

(i) a current licence of one of the kinds mentioned in paragraph (b) above; and

(ii) a current foreign licence, that is to say, a document issued under the law of a country outside the United Kingdom authorising the holder to drive a motor car in that country,

did not amount in aggregate to more than two years;”.

(2) After that subsection there shall be inserted the following subsection—

“(1A) Where the holder of a current licence of one of the following kinds, that is to say,—

(a) a licence to drive a motor car granted under Part III of this Act (being a provisional licence within the meaning of that Part); and

(b) a licence to drive a motor car (being a licence corresponding to such a provisional licence as aforesaid) granted under the law in force in Northern Ireland,

has passed the test of competence to drive a motor car prescribed under section 85(2) of this Act or the corresponding law in force in Northern Ireland, he shall be regarded for the purposes of paragraph (bb) of subsection (1) above as the holder of a current licence of one of the kinds mentioned in paragraph (b) of that subsection.”

(3) Nothing in this section shall affect the operation of that section in relation to the making of an entry in the register on an application made before the commencement date.

3.—(1) In subsection (1) of section 131 of the 1972 Act (licences to give instruction in the driving of motor cars)—

(a) for the words “the examination referred to in section 128(1)(a) of this Act” there shall be substituted the words “such part of the examination referred to in section 128(1)(a) of this Act as consists of a practical test of ability and fitness to instruct”;

(b) after the word “satisfied” there shall be inserted the words “that the applicant has passed the other parts of that examination and”; and

(c) for the words “paragraphs (b) (as amended by Regulation 4 of the Motor Cars (Driving Instruction) Regulations 1977), (c) and (d) of the said section 128(1)” there shall be substituted the words “paragraphs (b), (bb), (c) and (d) of the said section 128(1)”. Licences to give instruction in the driving of motor cars. S.I. 1977/1043.

(2) In subsection (2) of that section for the words “two or more such licences have” there shall be substituted the words “such a licence has”.

(3) Nothing in this section shall affect the operation of that section in relation to the granting of a licence under that section—

(a) on an application made before the commencement date;
or

(b) on an application made during the period of twelve months beginning with that date by a person who has held such a licence during the period of twelve months ending with that date.

Examinations and tests of ability to give driving instruction.

4.—(1) For paragraphs (a) to (e) of subsection (1) of section 133 of the 1972 Act (examinations and tests of ability to give driving instruction) there shall be substituted the following paragraphs—

“(a) for requiring a person submitting himself to any part of such an examination which consists of a practical test, or to such a test of continued ability and fitness, to provide a vehicle for the purposes of the test, being a vehicle in respect of which such conditions as may be specified in regulations are complied with;

(b) for requiring a person applying to submit himself for any part of such an examination to pay to the Registrar such fee as may be specified in the regulations in relation to that part;

(c) for requiring a person who desires to submit himself for any part of such an examination to supply the Registrar with such particulars as the Secretary of State may determine.”

(3) For subsection (2) of that section there shall be substituted the following subsection—

“(2) A magistrates’ court acting for the petty sessions area in which a person who has submitted himself for any part of an examination of ability to give instruction in the driving of motor cars resides or, if he resides in Scotland, the sheriff within whose jurisdiction he resides, shall have power on the application of that person to determine whether that part was properly conducted in accordance with the regulations; and if it appears to the court or sheriff that that part of the examination was not so conducted, the court or sheriff may order that any fee payable by the applicant in respect of that part shall not be paid, and if it has been paid, shall be repaid.”

Short title, interpretation, commencement and extent.

1972 c. 20.

5.—(1) This Act may be cited as the Road Traffic (Driving Instruction) Act 1984.

(2) In this Act—

“the 1972 Act” means the Road Traffic Act 1972;

“the commencement date”, in relation to any provision, means the day on which that provision comes into force.

(3) This Act shall come into force on such day as the Secretary of State may by order made by statutory instrument appoint; and different days may be so appointed for different provisions or for different purposes.

(4) This Act does not extend to Northern Ireland.